



CHAPTER cxiii.

An Act to authorise the Port Talbot Railway and Docks Company to raise further moneys for the purposes of their undertaking. A.D. 1903.
[21st July 1903.]

WHEREAS by the Port Talbot Railway and Docks Act 1894 (herein-after called "the Act of 1894") the Port Talbot Company were dissolved and re-incorporated under the name of the Port Talbot Railway and Docks Company (herein-after referred to as "the Company") and it was provided by the said Act that the capital of the Company should be six hundred thousand pounds in sixty thousand shares of ten pounds each and the Company were also by the said Act authorised to borrow on mortgage of their undertaking any sum not exceeding one hundred and seventy-four thousand pounds but it was by the same Act provided that in respect of every one hundred thousand pounds of the capital issued and accepted and one-half whereof should have been paid up the Company might borrow a sum or sums not exceeding in the whole twenty-nine thousand pounds but that no part of any such sum of twenty-nine thousand pounds should be borrowed until shares for the said portion of the capital in respect of which the borrowing powers were to be exercised were issued and accepted and one-half of such capital was paid up and the other requirements in the said Act mentioned had been complied with And it was provided by section 27 of the said Act that the Company might create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but that notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created

57 & 58 Vict.
c. cxli.

A.D. 1903. and issued or granted by the Company under that or any subsequent Act should subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and should have priority over all principal moneys secured by such mortgages :

And whereas by section 143 of the Act of 1894 the Company were authorised to pay interest on their paid up capital during the period limited for the completion of the works by that Act authorised and it was provided that the amount to be so paid for interest should not exceed seventy-five thousand pounds and that the amount so paid should not be deemed share capital in respect of which the borrowing powers of the Company might be exercised but that such borrowing powers should be reduced to the extent of one-third of the amount paid for interest as aforesaid :

And whereas the amount so paid by the Company for interest was the sum of seventy thousand four hundred and thirty-nine pounds, eighteen shillings and ninepence and the amount which they were by the said Act authorised to borrow became consequently reduced by one-third of that amount to the sum of one hundred and fifty thousand five hundred and twenty pounds :

59 & 60 Vict.
c. cxlv.

And whereas by the Port Talbot Railway and Docks (Ogmore Valleys Extension) Act 1896 the Company were authorised to construct certain railways and works to raise additional capital not exceeding two hundred and ten thousand pounds and to borrow in respect thereof not exceeding seventy thousand pounds :

59 & 60 Vict.
c. ccxii.

And whereas by the Port Talbot Railway and Docks (South Wales Mineral Railway Junction) Act 1896 the Company were authorised to construct the railways and works described therein and to raise additional capital not exceeding one hundred and twenty thousand pounds and to borrow in respect thereof not exceeding forty thousand pounds :

62 & 63 Vict.
c. excix.

And whereas by the Port Talbot Railway and Docks Act 1899 further powers were conferred upon the Company with reference to their undertaking and the Company were authorised to raise three hundred thousand pounds additional capital and to borrow in respect thereof not exceeding one hundred thousand pounds :

[3 EDW. 7.] *Port Talbot Railway and Docks Act, 1903.* [Ch. cxiii.]

And whereas the Company have created and issued the following amounts of capital and have also created and issued the following amounts of debenture stock :—

A.D. 1903.

Date of Act.	Ordinary Shares.	Four per Centum Preference Shares.	Debenture Stock.
	£	£	£
1894 - - - - -	600,000	—	150,520
1896 :— (Ogmore Valleys Extension Act) - - -	23,830	180,000	70,000
1896 :— (South Wales Mineral Railway Junction Act)	—	120,000	40,000
1899 - - - - -	—	300,000	100,000
	£ 623,830	600,000	360,520

And whereas the undertaking of the Company and the various works authorised by the said Acts have been constructed but the whole of the moneys raised by the creation and issue of the said share capital and debenture stock has been expended and additional expenditure is required to improve and equip the undertaking and the Company are unable at the present time to raise additional capital and it is expedient that powers as herein-after contained should be conferred for that purpose :

And whereas it is expedient that the agreement between the Company of the one part and the Rhondda and Swansea Bay Railway Company of the other part whereof a copy is set out in the schedule hereto should be confirmed :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Port Talbot Railway and Docks Act 1903. Short title.

2. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the giving of notices and the provision to be made for affording access to the special Act by all parties interested and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by the Companies

Incorporation of provisions of general Acts.

[Ch. cxiii.] *Port Talbot Railway and Docks Act, 1903.* [3 EDW. 7.]

A.D. 1903. — Clauses Act 1869 are except where expressly varied by this Act incorporated with and form part of this Act.

Power to
create addi-
tional debenture stock.

3. In addition to the amount of debenture stock which the Company are already authorised to create they may from time to time create and issue debenture stock to any amount not exceeding in the whole one hundred thousand pounds and the said stock shall rank *pari passu* with and form part of the existing debenture stock of the Company subject to the provisions of section 27 of the Act of 1894.

Application
of moneys
raised.

4. All moneys raised by the Company under the powers of this Act shall be applied only to the purposes of constructing additional sidings railway extensions and loops extension of wharves erection of training walls for the protection of the entrance channel and the development and equipment of the undertaking of the Company and the purchase of land for the purposes thereof and to any other purpose to which capital is properly applicable.

Deposits for
future bills
not to be
paid out of
capital.

5. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Confirming
scheduled
agreement.

6. The agreement dated the twenty-fifth day of March one thousand nine hundred and three and made between the Company of the one part and the Rhondda and Swansea Bay Railway Company of the other part whereof a copy is set out in the schedule hereto is hereby confirmed and made binding upon the parties thereto.

Provision as
to general
Railway
Acts.

7. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels.

Costs of Act.

8. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

A.D. 1903.

THIS AGREEMENT made the twenty-fifth day of March one thousand nine hundred and three between THE PORT TALBOT RAILWAY AND DOCKS COMPANY (herein-after called "the Port Talbot Company") of the one part and THE RHONDDA AND SWANSEA BAY RAILWAY COMPANY (herein-after called "the Rhondda Company") of the other part.

WITNESSETH that each of the said companies so far as regards the acts to be done on its part hereby agrees with the other as follows (that is to say):—

1. The Port Talbot Company shall convey in fee simple to the Rhondda Company all that piece or parcel of land containing by admeasurement one acre or thereabouts situated at Port Talbot and more particularly delineated on the plan attached to these presents and thereon edged blue and marked with the letter "A."

2. For the purposes of sidings the Port Talbot Company shall provide in perpetuity free of any charge or rent all those pieces or parcels of land situated at Port Talbot and adjoining the land coloured blue specified in the preceding clause of these presents and containing by admeasurement one acre or thereabouts and more particularly delineated on the said plan and edged yellow and marked with the letter "C" and the Rhondda Company shall for the like purposes and on the like terms and conditions provide the said piece or parcel of land edged blue on the said plan and the Port Talbot Company shall at their own expense level the said pieces or parcels of land edged respectively blue and yellow and make the same ready to receive the permanent way and remove so much of their running line as was originally constructed upon the said plots of land edged respectively blue and yellow and make a new running line for themselves somewhat further to the south-east of the original line.

3. Sidings shall be made or completed by the said companies upon the said plots of land edged blue and yellow and on the land of either of the said companies contiguous thereto as may be agreed between the said companies and the same shall be maintained and worked in such manner as may be from time to time agreed upon between them with power for the said companies to make any agreement which they may think fit as to the ownership of any of the materials of the said sidings and their adjuncts and the cost of providing and maintaining and working the same and the traffic to be admitted to the said sidings and the payment of persons employed about the same and with power from time to time to modify any of such agreements.

[Ch. cxiii.] *Port Talbot Railway and Docks Act, 1903.* [3 EDW. 7.]

A.D. 1903.
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IN WITNESS whereof the companies parties hereto have hereunto set their common seals the day and year first above written.

The common seal of the Port Talbot Railway and Docks Company was hereto affixed by order of the Board in the presence of—

JOHN R. WRIGHT
Director.

EDWARD KNOTT
Secretary.

L.S.

The common seal of the Rhondda and Swansea Bay Railway Company was hereunto affixed by order of the Board in the presence of—

H. S. LUDLOW
Secretary.

L.S.

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